

4. 9:00 AM CASE NUMBER: C23-03274
CASE NAME: CARLOS CARRILLO MOLINA VS. RODRIGO MURILLO
*HEARING ON MOTION IN RE: LEAVE TO FILE FIRST AMENDED COMPLAINT
FILED BY: CARRILLO MOLINA, CARLOS
TENTATIVE RULING:

The motion of Plaintiff for Leave to File a First Amended Complaint was properly served and no opposition was received. The motion is granted. Plaintiff shall file and serve the proposed First Amended Complaint no later than February 9, 2026. Defendants shall have 30 days after being served with the First Amended Complaint to file a responsive pleading. (Code of Civil Procedure § 471.5(a))

5. 9:00 AM CASE NUMBER: C24-01666
CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER
*HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S THIRD AMENDED COMPLAINT
FILED BY: SAN RAMON REGIONAL MEDICAL CENTER
TENTATIVE RULING:

Before the Court is Defendant San Ramon Regional Medical Center ("Defendant," "SRRMC," or "the Hospital")'s motion to strike. The motion to strike relates to Plaintiff Niraj Gandhi ("Plaintiff" or "Gandhi")'s Third Amended Complaint for (1) Negligence, (2) Fraud and Misrepresentation, and (3) Intentional Infliction of Emotional Distress, and seeks to strike the amended complaint in its entirety or, in the alternative to strike Plaintiff's prayer for punitive damages.

Defendant moves to strike Plaintiff's Third Amended Complaint in its entirety on the ground that it was not timely filed; in the alternative, Defendant moves to strike Plaintiff's prayer for punitive damages on the ground that Plaintiff failed to state sufficient facts to allege punitive damages in that he failed to show by clear and convincing evidence that Defendant (1) knowingly retained an unfit employee, or (2) authorized or ratified wrongful misconduct.

Plaintiff, who is an *in propria persona* litigant, opposes Defendant's motion to strike the complaint in its entirety on grounds of *res judicata* and the doctrine of law of the case in that the Court already accepted the Third Amended Complaint; the Plaintiff opposes Defendant's motion to strike his prayer for punitive damages on the grounds that he expressly alleged vicarious liability and ratification using specific facts to support his legal conclusions.

Defendant's motion to strike Plaintiff's Third Amended Complaint in its entirety is denied, and the motion to strike Plaintiff's prayer for punitive damages is granted without leave to amend.

Factual Allegations and Background

This case arises from a dispute over the alleged loss of medical records.

Niraj Gandhi underwent a left heart catheterization and angiogram performed by cardiologist Dr. Arman Saw (“Dr. Saw”) at the SRRMC Catheterization Lab (“Cath Lab”) on November 24, 2022. (Third Amended Complaint (“TAC”) at 2:24-25; 5:1-7:5.; Ex. A, B.) Immediately after the procedure, Gandhi asked to be provided with the images and video captured during the procedure and Dr. Saw told him the Hospital would produce it on a CD with his discharge packet. (*Id.* at 7:5-11.) Gandhi did not receive a CD upon discharge, however. (*Id.*)

Gandhi contacted the Hospital’s medical records department in early December of 2022 to inquire about obtaining the images and video and he was twice given CDs by SRRMC’s medical records department purporting to contain them. (TAC at 7:16-18.; 8:1-6.) Both times, he alleges, the CDs did not contain images or video from the procedure. (*Id.* at 8:1-14.)

Gandhi ultimately sought a second opinion on his heart condition from Dr. Ramesh Veeragandham (“Dr. Veeragandham”) in June of 2023. (TAC at 3:12-13; 8:20-21.) Dr. Veeragandham advised Plaintiff that in order for him to determine whether an additional procedure was necessary, he would need to review the angiogram imaging, and, in its absence, a repeat procedure would be required. (*Id.* at 20:1-6) Dr. Veeragandham attempted to access the CDs Plaintiff provided from the Hospital and, finding no images or video, Dr. Veeragandham contacted the Cath Lab at SRRMC to seek the imaging from the Hospital directly. (TAC at 8:20-27.) Dr. Veeragandham made the following note July 6, 2023: “I tried to access the films in San Ramon but somehow there was no data. After back-and-forth, it was determined that the films were lost permanently.” (TAC at 9:1-6.)

On August 9, 2023, Gandhi underwent a second left heart catheterization, this time performed at John Muir Hospital in Concord by Dr. Christopher Chen. (TAC at 10:6-8.) Two days later he began to feel a “very strong burning sensation and numbness in [his] thigh and upper leg around the incision from where the catheterization was performed.” (*Id.* at 10:11-15.) He was subsequently diagnosed with a femoral nerve injury, likely caused by the second angiogram. (*Id.* at 4:8-14, 10:22-11:2.)

Gandhi filed the instant suit on July 1, 2024. (Northrop Dec. ¶ 2.) Defendant filed a demurrer and motion to strike Gandhi’s complaint following which Gandhi filed a First Amended Complaint on November 21, 2024. (*Id.* ¶ 3.)

A subsequent demurrer and motion to strike were heard March 7, 2025, leading to a Second Amended Complaint. (Northrop Dec. ¶ 5) Defendant filed another demurrer and motion to strike on August 1, 2025. (*Id.* ¶ 5.) On August 20, 2025, the Court granted the motion to strike with leave to amend and sustained Defendant’s demurrer without leave to amend as to a cause of action for Violation of the Confidentiality of Medical Information Act but overruled the demurrer as to the other claims. (*Id.* ¶¶ 6-7.) The Order After Hearing for the motion to strike granted leave to amend without giving a specific deadline for the amendment. (*Id.* Ex. A.)

Gandhi filed his Third Amended Complaint on September 5, 2025. (TAC at 1.) Defendant’s counsel sent a meet-and-confer letter to Gandhi on September 10, 2025, outlining the Defendant’s demand

that Gandhi withdraw his complaint and/or withdraw his prayer for punitive damages. (Northrop Dec. Ex. D.) A subsequent September 16, 2025, phone call confirmed Gandhi was not willing to withdraw his complaint or his prayer for punitive damages, prompting Defendant to file the instant motion. (*Id.* ¶ 11.)

Legal Standard

Motion to Strike

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof...” (Code Civ. Proc., § 435(b)(1).) The court may, upon a motion made pursuant to § 435 “(a) Strike out any irrelevant, false, or improper matter inserted in any pleading[,] [or] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.)

A motion to strike reaches only matters appearing on the face of the pleading or from matters of which the Court may take judicial notice. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.)

Amendment

“An amendment should be allowed where the defect, though one of *substance*, may possibly be cured by supplying omitted allegations, and the plaintiff has not had a fair opportunity to do so...” (*Grieves, supra*, 157 Cal.App.3d at 168.) Where the defect raised by a motion to strike is not reasonably capable of cure, leave to amend should be denied. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.)

Self-representation is not a ground for exceptionally lenient treatment. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.) *Pro per* litigants are not entitled to special treatment and are held to the same rules of procedure as an attorney. (*Bai v. Yip* (2024) 107 Cal.App.5th 188, 197.)

Analysis

Untimeliness

Defendant contends that Gandhi’s Third Amended Complaint should be stricken in its entirety because it was untimely filed. (MTS at 3:9-15.) Plaintiff argues that his Third Amended Complaint should not be stricken based on the doctrines of law of the case and *res judicata*, because the Court previously accepted the Third Amended Complaint and denied a subsequent motion for leave to amend nunc pro tunc as moot. (Opp. to MTS at 3:3-7, Gandhi Dec. Ex. A.)

Law of the Case and *res judicata*

As threshold issues, neither the doctrine of law of the case, nor *res judicata* apply here.

Under the doctrine of law of the case, an appellate court’s binding legal determination controls the outcome during subsequent proceedings in the same case. (*People v. Barragan* (2004) 32 Cal.4th 236,

246; *Kowis v. Howard* (1992) 3 Cal.4th 888, 892-893.) The doctrine of law of the case applies only to an appellate court's decision on a question of law. (*Barragan, supra*, 32 Cal.4th at 246.)

Here, law of the case is inapplicable because no appellate court has heard this case or issued any binding legal determination as to the filing of Gandhi's Third Amended Complaint.

Res judicata prohibits the relitigation of claims and issues which have already been adjudicated in an earlier proceeding. The doctrine has two components. In its primary aspect[,] the doctrine of *res judicata* or claim preclusion operates as a bar to the maintenance of a second suit between the same parties on the same cause of action. The secondary aspect is collateral estoppel or issue preclusion, which does not bar a second action but precludes a party to an action from relitigating in a second proceeding matters litigated and determined in a prior proceeding.

(*Kelly v. Vons Companies, Inc.* (1998) 67 Cal.App.4th 1329, 1335 (nested quotations omitted).)

To establish a claim of collateral estoppel a party must demonstrate (1) the identical issue was decided in a prior adjudication, (2) there was a final judgment on the merits, and (3) the party against whom the claim is asserted was a party or in privity with a party to the prior adjudication. (*Rohrbasser v. Lederer* (1986) 179 Cal.App.3d 290, 297.)

Here, *res judicata* is inapplicable because there was not a final judgment on the merits as to this issue. The Court merely determined on a procedural basis that relief under California Code of Civil Procedure § 473 was unnecessary because the Third Amended Complaint was already accepted by the Court and filed in this case.

Striking Third Amended Complaint on Grounds of Untimeliness is Unsupported

Defendant's argument that the untimeliness of Gandhi's Third Amended Complaint is grounds for it to be stricken, however, also fails.

"The time in which any act provided by law is to be done is computed by excluding the first day, and including the last, unless the last day is a holiday, and then it is also excluded." (Code Civ. Proc., § 12.) "If any city, county, state, or public office, other than a branch office, is closed for the whole of any day, insofar as the business of that office is concerned, that day shall be considered as a holiday for the purposes of computing time under Sections 12 and 12a." (Code Civ. Proc., § 12b.)

Here, the Court determines that Gandhi's filing of the Third Amended Complaint on September 5 came 11 court days after the August 20, 2025 entry of the Order After Hearing. (Code Civ. Proc., § 1003; *Maxwell v. Perkins* (1953) 116 Cal.App.2d 752, 756 [an order becomes legally effective at the time it is signed and filed.])

Under California Rule of the Court 3.1320(g), following a ruling on a demurrer, unless otherwise ordered, leave to amend within 10 days is deemed granted. There is no such rule regarding leave to amend granted in relation to a motion to strike either in the California Rules of Civil Procedure or the California Rules of the Court. “If a motion to strike is granted pursuant to Section 436, the court may order that an amendment or amended pleading be filed *upon terms it deems proper*.” (Code Civ. Proc., § 472a(d) (emphasis added).)

Though the law does not generally *require* a trial court to specify the time to amend after ruling on a demurrer or motion to strike (see § 472b; rule 3.1320(g)), some additional degree of clarity and special care may be necessary to serve the ends of justice and maintain public confidence in the judicial system in cases [with *pro per* parties.] And where that clarity has not been provided, the court may relieve a self-represented litigant from their default or noncompliance, particularly where the noncompliance does not affect the substantial rights of the parties.

(*Bai, supra*, 107 Cal.App.5th at 198.)

Where there is no evidence that a movant was purposely dilatory in the filing of an untimely amended complaint and the non-movant suffered no prejudice, it is error to strike an amended complaint. (*Amacorp Industrial Leasing Co. v. Robert C. Young Associates, Inc.* (1965) 237 Cal.App.2d 724, 729-730.) There is no absolute right to have a pleading stricken for lack of timeliness in filing where no question of jurisdiction is raised and where the late filing was “a mere irregularity.” (*Tuck v. Thuesen* (1970) 10 Cal.App.3d 193, 196 (disapproved on other grounds by *Neel v. Magana, Olney, Levy, Cathcart & Gelfand* (1971) 6 Cal.3d 176.)) Whether to grant or deny the motion is at the discretion of the court. (*Ibid.*)

SRRMC cites CRC 3.1320(g) and *Bai, supra*, 107 Cal.App.5th 188, for the proposition that Gandhi had 10 days from the date of the entry of the Order After Hearing to amend, and thus by filing on September 5, 2025, he missed the deadline. But neither CRC 3.1320(g) nor *Bai* support this position.

Here, Gandhi was granted leave to amend in relation to the Court’s August 20, 2025, ruling on SRRMC’s motion to strike, *not* SRRMC’s accompanying demurrer. (Northrop Dec. Ex. A, B.)

California Rule of the Court 3.1320(g) relates specifically and only to demurrers; it reads as follows:

Leave to answer or amend Following a ruling on a **demurrer**, unless otherwise ordered, leave to answer or amend within 10 days is deemed granted, except for actions in forcible entry, forcible detainer, or unlawful detainer in which case 5 calendar days is deemed granted.

(Cal Rules of Court, Rule 3.1320(g) (emphasis added).)

Meanwhile, *Bai* is a case where a demurrer was filed in tandem with a motion to strike, and there the court relied on California Code of Civil Procedure § 472b and CRC 3.1320(g), both of which relate to the filing of and responding to demurrers. Neither of these statutes prescribe a 10-day deadline to amend following motions to strike. (*Bai, supra*, 107 Cal.App.5th at 195; Civ. Code §§ 581(f)(2), (4), 472b; CRC 3.1320(g).)

Here, the Order After Hearing for the motion to strike granted leave to amend without giving a specific deadline for the amendment. (Northrop Dec. Ex. A.) However, pursuant to California Code of Civil Procedure § 472a(d), where a motion to strike is granted with leave to amend “the court may order that an amendment or amended pleading be filed *upon terms it deems proper*.” (Code Civ. Proc., § 472a(d) (emphasis added).) And as noted in *Bai*, where *pro per* parties are concerned, some additional degree of clarity may be necessary to serve the ends of justice in setting deadlines for leave to amend with regard to motions to strike and demurrers, and “where that clarity has not been provided, the court may relieve a self-represented litigant from their default or noncompliance, particularly where the noncompliance does not affect the substantial rights of the parties.” (*Bai, supra*, 107 Cal.App.5th at 198.)

Defendant argues that Gandhi will not be prejudiced if he is required to rely on his Second Amended Complaint in the event that his Third Amended Complaint is stricken in its entirety. This is an equitable argument that has no bearing on the merits of this legal issue.

There has been evidence demonstrating that Gandhi was purposely dilatory in filing his Third Amended Complaint. (*Amacorp Industrial Leasing Co., supra*, 237 Cal.App.2d at 729-730.) Even if, assuming *arguendo*, there was a 10-day deadline to amend following motions to strike, the Court finds, in its discretion, that the delay, such as it was, does not prejudice SRRMC and, accordingly, the Court declines to strike the entire Third Amended Complaint on this ground. (Code Civ. Proc., § 472a(d); *Tuck, supra*, 10 Cal.App.3d at 196.)

Punitive Damages

Defendant contends that Gandhi failed in his Third Amended Complaint to allege any facts to support punitive damages. Namely, Defendant notes, Gandhi did not plead facts that would expose Defendant to liability for punitive damages given that SRRMC is a corporation. Defendant argues that he failed to allege that SRRMC knowingly retained an unfit employee or authorized or ratified wrongful misconduct and he further failed to allege that an officer, director, or managing agent of the corporation had advance knowledge and conscious disregard, or authorized or ratified an act of oppression, fraud, or malice. (MTS at IV.; Code Civ. Proc., § 3294(b).)

Gandhi contends that he alleged detailed facts that are supported by deposition testimony that Defendant’s managing agent, registered nurse and supervisor of the Cath Lab Mike Miller, ratified a fraudulent scheme to conceal the loss of his medical records from him by issuing him blank CDs. (Opp. to MTS at 2:1-7.)

A plaintiff may recover punitive damages in an action for the breach of an obligation not arising out of

contract where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227; Code Civ. Proc., § 3294(a).) To survive a motion to strike, an allegation of punitive damages requires the plaintiff to plead the ultimate facts showing entitlement to such relief. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1254.)

As used in this section, the following definitions shall apply:

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

(3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294(c).)

An allegation that an intentional tort was committed is not sufficient to warrant an award of punitive damages. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “*There must be an intent to vex, annoy or injure*. Mere spite or ill will is not sufficient; and mere negligence, *even gross negligence is not sufficient to justify an award of punitive damages.*” (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894 (emphasis in original).) “Malice” required by California Civil Code § 3294 implies acts taken in the spirit of mischief or with criminal indifference. (*Taylor v. Superior Court of Los Angeles County* (1979) 24 Cal.3d 890, 894 (citations omitted).) To establish malice, a plaintiff must demonstrate that the defendant was “aware of the probable dangerous consequences of his conduct, and that he wilfully and deliberately failed to avoid those consequences.” (*Id.* at 895-896.)

‘[P]unitive damages should not be allowable upon evidence that is merely consistent with the hypothesis of malice, fraud, gross negligence or oppressiveness. Rather some evidence should be required that is inconsistent with the hypothesis that the tortious conduct was the result of a mistake of law or fact, honest error of judgment, over-zealousness, mere negligence or other such noniniquitous human failing.’

(*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1288, fn. 14 (citation omitted).)

The circumstances of oppression, fraud or malice must be alleged in the pleading to support a claim

of punitive damages. (*Grieves, supra*, 157 Cal.App.3d at 166.) Charges of malice, fraud, or oppression must be pled with specificity. (*G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) General allegations are insufficient to meet the specific pleading requirement. (*Anschutz Entertainment Group, Inc. v. Snepp* (2009) 171 Cal.App.4th 598, 643.)

Plaintiff's Conclusory Allegations are Insufficient to Support a Claim of Oppression Fraud or Malice

Gandhi in his Third Amended Complaint alleged that:

Defendants' conduct constitutes despicable conduct carried out with a willful and conscious disregard for the rights and safety of the Plaintiff, demonstrating fraud and malice. Defendants' repeated delivery of blank CDs, while knowing the requested records did not exist, was a calculated and deceitful act intended to conceal their negligence and deceive Plaintiff.

(TAC at 15:17-22.)

To establish "malice," a plaintiff must demonstrate that the defendant was aware of the probable dangerous consequences of his conduct and deliberately failed to avoid those consequences. "Malice" means conduct with which the defendant intends to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294(c).) Despicable conduct "connotes conduct that is "... so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.'" (*Lackner v. North*, 135 Cal.App.4th 1188, 1210 (citation omitted).)

Here, Plaintiff alleges that Defendant negligently lost his medical records and attempted to conceal that fact. (TAC at 15:17-22.) He bolsters this by simply citing the statute's definition for malice in a conclusory fashion. (*Ibid.*) Where Plaintiff is more specific in his allegations – for instance, the claim that Miller, along with the other staff in the room during his procedure, "must have been aware of the images and videos not being saved on the server," and "Mr. Miller had advance knowledge of the non-existence [sic] of the records being sought but hid the facts from the Plaintiff and ratified the conduct" his allegations are a far cry from an intent to cause injury to the plaintiff with a willful and conscious disregard of the rights or safety of others. (TAC at 16:3-5, 16:25-17:1; Civ. Code, § 3294(c).)

As noted *supra*, an allegation that an intentional tort was committed is not sufficient to warrant an award of punitive damages. (*Grieves, supra*, 157 Cal.App.3d at 166.) Intent to "vex, annoy or injure" is required, and "mere negligence, even gross negligence is not sufficient to justify an award of punitive damages." (*Ebaugh, supra*, 22 Cal.App.3d at 894 (emphasis in original).)

Gandhi contends in his Opposition to Defendant's Motion to Strike that Miller "admitted he 'noticed there was no images' yet failed to inform Plaintiff. The hospital ratified this silence by allowing [the medical records department] to issue blank CDs to Plaintiff for months." (Opp. to MTS at 1-7.)

Gandhi's argument comes without a corresponding citation to his Third Amended Complaint to this.) Even if pleaded, the allegation that the hospital "allowed the medical records department to issue blank CDs to the Plaintiff," at best describes a negligent omission, rather than an act constituting malice, oppression or fraud.

Gandhi's allegations are by and large conclusory, and when they are specific they do not support a claim for punitive damages. Where even a claim of an intentional tort or gross negligence is not enough to support a claim of malice, oppression, or fraud, for the purposes of punitive damages, the allegations in Gandhi's Third Amended Complaint are insufficient for the same. (*Grieves, supra*, 157 Cal.App.3d at 166; *Ebaugh, supra*, 22 Cal.App.3d at 894; Code Civ. Proc., § 3294.)

Conclusion

Plaintiff fails to plead sufficient facts demonstrating malice, oppression, or fraud to support an award of punitive damages. (*PH II, Inc., supra*, 33 Cal.App.4th at 1683.) The defect in his prayer for punitive damages is not reasonably capable of cure given that Plaintiff has had a fair opportunity to cure the defect. Plaintiff's third version of his complaint, still fails to meet the requisite burden. (*Grieves, supra*, 157 Cal.App.3d at 168; *CLD Construction, Inc., supra*, 120 Cal.App.4th at 1146.) This does not preclude Plaintiff from seeking leave to amend his complaint in the future, should he uncover facts in discovery that support a prayer for punitive damages.

For the foregoing reasons, Defendant's motion to strike Plaintiff's Third Amended Complaint in its entirety is **denied** and Defendant's motion to strike Plaintiff's prayer for punitive damages is **granted without leave to amend**.

6. 9:00 AM CASE NUMBER: C25-00901
CASE NAME: MOUNICA AITHA VS. VINOD PASPUNOORI
*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS
FILED BY: PASPUNOORI, VINOD
TENTATIVE RULING:

Defendants Vinod Paspunoori and Mounica Paspunoori aka Mounica Challa's motion to quash is **granted**.

Background

Plaintiff Mounica Aitha aka Mounica Paspunoori is an individual who, by her own estimation, has been continuously domiciled in California since late 2013 or early 2014. (Aitha dec. ¶7. Note the Defendants assert that Aitha moved to California in December 2014 when she got married. (V. Paspunoori Dec. ¶24).)

Plaintiff is suing her Brother (Vinod) and her sister-in-law (Mounica). Plaintiff alleges that in 2009 she gave Defendants over \$200,000 so that Defendants could buy property for Plaintiff, but they failed to do so. (Comp. ¶13.) Plaintiff also alleges that between 2008 and 2012, Defendants sent